

Court No. - 3

Case :- WRIT - C No. - 39730 of 2023

Petitioner :- Vijay Shankar Yadav

Respondent :- District Magistrate And 2 Others

Counsel for Petitioner :- Kamla Kant Mishra, Varun Mishra

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Learned counsel for petitioner has challenged the demand notice. He has not however challenged the electricity bill.

Learned counsel for Electricity Department is directed to provide the latest electricity bill to the petitioner.

Put up this case as fresh on 07.12.2023.

Order Date :- 28.11.2023

Sharad/-

(Shekhar B. Saraf, J.)

(Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 39730 of 2023

Petitioner :- Vijay Shankar Yadav

Respondent :- District Magistrate And 2 Others

Counsel for Petitioner :- Kamla Kant Mishra, Varun Mishra

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

1. By means of the present writ petition, the petitioner has challenged a recovery certificate. In paragraph 14, however it has been stated that the billing which was being done vis-a-vis petitioner's electricity connection was not being done properly.

2. Sri Rakesh Kumar Mishra, Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel for the Electricity Department states that if the petitioner is aggrieved by the billing, he may approach the concerned Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. He submits that if an application is filed, the same shall be considered in accordance with law.

3. Under such circumstances, we provide that if the petitioner files an application under Clause 6.5 of the Electricity Supply Code, 2005 within 15 days, the same shall be considered in accordance with law, within a period of three months. For a period of three months or till the application is decided whichever is earlier, no coercive action shall be taken against the petitioner.

4. With these observations, the writ petition is **disposed of**.

Order Date :- 7.12.2023

Arif